

CHAPTER FOURTEEN  
**FUNDAMENTAL RIGHTS AND FREEDOMS**  
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**1. Historical Perspective: Rights and the Evolution of Constitutionalism**

The centuries from 1600 to 1900 can be considered as the Golden Age of the development of human rights.

In Mediaeval times it was social classes and other groups (guilds, associations, churches) rather than individuals to receive protection; in other words, only social groups — and not individuals — had rights *vis-a-vis* the State. The most significant advancement during those times were the English Charters, in particular the Magna Charta (1215), the first attempt to protect the writ of *habeas corpus* and freedom of movement and to circumscribe the power of the Crown. These rights were extended to all individuals regardless of their social position thus signifying a break with class or social group rights.

This was only a foretaste of the epoch to come, marked by the liberal concept of rights that emerged for the first time in the English Bill of Rights of 1689. With it, the idea that the protection of individual rights is an eminent and irrenounceable function of State organisation began to impose itself. The Bill of Rights emphasised the power of the State to impose punishment and to regulate a standing army based on the rule of law.

The modern age of constitutional rights opened on the eve of the

American Revolution. In 1791, just a few years after the approval of the US Constitution (1787), the first ten amendments (the American Bill of Rights) entered into effect to protect freedom of religion, press, speech, assembly; freedom from excessive fines and forfeitures and from double jeopardy, as well as the right to bear arms, to be secure and to due process. These freedoms were considered pre-existing conditions rather than rights sanctioned by the Bill of Rights, echoing back to the assertion of natural law found in the Declaration of Independence, as well as the English tradition of common law and the theories of John Locke. All the above-mentioned rights are to ensure the individual is free from undue interference of public powers. Law is seen as a possible instrument through which the State can violate the privacy of citizens; therefore, its application must be curtailed and regulated as much as possible, through the assertion of unalienable rights (hierarchically superior to ordinary law) that make citizen free from the "intrusion" of State power.

In 1789 the Declaration of the Rights of Man and the Citizen was approved in France. This document has interesting points in common and significant differences with respect to the American Bill of Rights. The latter is dry and pragmatic unlike the Declaration, which is much more philosophical, wordy and less suitable for immediate application. Such differences arise from the political situations prevalent at the times in which they were written. The Bill of Rights was drawn up at a time when the independence of the American nation and the enjoyment of individual rights were a reality, whereas the French Declaration was fundamentally a declaration of intent; it gave juridical form to a social reality that had yet to be constructed. The Declaration states that the "aim of all political association is to guarantee the happiness of all and to preserve the natural fundamental rights of man, that is liberty, property, security and the resistance of oppression"; on the contrary, the American Bill of Rights often refers to the "common good" which leads some authors to hold that the French Declaration is rooted in a more individualistic vision than its American counterpart.

In the years following 1789 (i.e. during the Revolution and then the Reign of Terror) the French Declaration was replaced by a series of subsequent Constitutions. The French model rapidly circulated throughout Europe thanks to its innovative character that rendered it superior to all other models of the time, but also because of the Napoleonic wars.

After 1848 other constitutions — often less democratic than those drawn up during the American and French Revolutions — were approved in various countries in Europe and in all of them the protection of basic rights was paramount, a good example being the French Constitution of 1848.

With the Constitution of 1849 for the first time the German people adopted their own bill of rights which then became the parameter for a bill of rights for the various states of the German Federation. As a result, the enjoyment of the same rights became a key element uniting all German citizens in the different *Länder*.

In 1848, Italy too adopted its first Constitution, the *Statuto albertino*, although this proved to be a modest instrument as far as protecting rights goes, and surely inferior to both its French and German counterparts.

The beginning of the 1900s and the post-World War I period opened with a radically different international political alignment that called for new solutions in formulating rights. The most notable example is the German Constitution of 1919, better known as the Weimar Constitution, a milestone for that era because it finally put individual human rights at the centre of a constitution that is no longer considered as a mere limit to public power. It is thanks to this Constitution that the passage from liberal constitutionalism to democratic constitutionalism was completed. Other noteworthy examples of that era are the Austrian and the Czechoslovak Constitutions both dated 1920.

After World War II a new phase of constitutionalism began where unalienable rights formed the principle nucleus of constitutions, emphasising those ethical and social values on which society is built.

It is with this spirit and in the aftermath of the horrors of World War II and the Fascist Regime that in 1948 the new Italian Constitution came into force.

## 2. Generations of Rights

All the Constitutions that were adopted in the first half of the Twentieth Century included a bill of rights to guarantee individual freedom against undue interference on the part of the State. Basically, the aim of these Constitutions was to ensure that public power abstained from authoritarian and repressive actions i.e. from acting outside the law and putting the security and liberty of its citizens at stake. Rights that are protected in this way are defined as *negative freedoms* because public power is asked to *abstain* from carrying out certain actions.

This is an extremely vast and heterogeneous category because considerably different situations all come under it. For example, personal freedom, the right to domicile or the prohibition of double jeopardy are different than the freedoms of opinion and assembly, voting rights and protection from undue taxation. The first group of rights refers to the more intimate sphere

of personal freedom, inherent to man's physical nature; their objective is to protect the integrity of everyone as a physical person. The second group of freedoms protects not only man's physical nature but also his social sphere. The freedoms listed above, typical expressions of *homo politicus*, all merit protection because through them the individual participates in his social group. The first category of freedoms is commonly called *civil rights*, whereas the second are known as *political rights*.

However, the conventional distinction between negative freedom and positive rights is less clear-cut than it appears at first.

Evidently the difference between the right to private property and the right to healthcare is not based on the involvement of the State. The difference instead lies in how the right is structured and in the fact that by supplying healthcare, the State pursues an objective of "equal social status" (e.g., Art. 3, It. Const.) that it does not when protecting the right to property. In both cases the State is involved, but only when the State acts to remove obstacles to social inequality does a *social right* exist.

During the 1970s constitutionalism took another step forward with the emergence of so-called *new rights* i.e. third generation rights. They represent a broad spectrum of situations and include individual rights of a private nature (the right to one's image, honour and identity) as well as the collective or rights of peoples, for example the right to a clean environment or to peace.

In recent years, many authors have identified a fourth *generation of rights*. These are distinguished from rights of the previous generations not only because they have just recently been given the status of rights but also because their protection is intergenerational. Rights such as those of sustainable development or connected to new applications of research in biotechnology, do not exhaust themselves in the space of one generation, but on the contrary are aimed at promoting a responsibility and solidarity in the utilisation of resources and patrimony of mankind capable of protecting the needs of generations to come.

Whereas more recent European Constitutions protect these new rights, the Italian Constitution, now sixty years old, does not contemplate them. Legal scholars have debated whether the constitutional rights contained in the Italian Constitution are to be considered a "closed" or "open" list i.e. with no possibility of integrating new rights into them or, on the contrary, capable of protecting rights of the third and fourth generations (Pace, Barbera). In many respects this question is no longer an issue because of the *multi-level protection* of new rights. This term is used to define the present situation whereby the same right may be recognised by various documents of a pseudo-constitutional nature; different national and even supra-national juridical bodies may all protect the same rights. This is the case at present

when alongside the traditional recognition of rights by the State, one also has the European Convention on Human Rights (ECHR) approved in 1950 and European Community Law at a supra-national level.

The most recent and advanced instrument at Community level to protect human rights is the Charter of Fundamental Rights of the European Union, approved in Nice in 2000. This document lists a series of fundamental rights and freedoms to be guaranteed to all EU citizens; its 54 articles are divided into six headings, each of which is dedicated to one of the Charter's fundamental values (dignity, freedom, equality, solidarity, citizenship and justice).

The ECHR also contains a pretty comprehensive catalogue of civil and political rights and established a judicial body, the European Court of Human Rights in Strasbourg. This Court has competence to review the statute and case law of the member states of the ECHR (provided they are not on a superior hierarchical level within the system of legal sources) to ascertain whether they violate the Convention.

The European Union also has its own judicial body, the Court of Justice of the European Communities (often referred to as the European Court of Justice - ECJ) which since 1975 has played an important role in protecting individual rights. As a result, the ECJ now has a vast case law concerning fundamental rights and freedoms with frequent references to decisions taken by the Strasbourg Court of Human Rights in similar cases.

As a result of this multi-level protection, the issue of amending less recent Constitutions in order to update them in terms of the rights they protect would appear to be overcome. However, the increase in the number of "new rights" is a phenomenon that could lead to more than a few problems. As rights often clash with each other, if a new right is protected, then a pre-existing right might have to be limited. When an individual's right to privacy is increased, for example, inevitably someone else's freedom of expression and right to information is restricted. In the Italian context, since Art. 2 of the Constitution provides that "the Republic guarantees the inviolable rights of man", the problem lies in determining which new rights are inviolable in nature and to which extent they should belong to this category.

Furthermore, given that most new rights are introduced through case law, judges have a specific task in resolving conflicts between different rights deserving protection —, i.e. they have to *balance* different interests.

### 3. Individual Rights

Looking more specifically at Italy, the catalogue of rights and freedoms contained in the Constitution reveals an approach based on the individualistic principle i.e. fundamental rights are considered instruments to protect the individual. Title I of the 1948 Constitution lists a series of rights, whereas the *Statuto albertino* only included one general provision on individual rights (Art. 26) leaving it up to Parliament to provide a more specific definition and discipline.

#### 3.1. Personal Freedom and Related Elements

Personal freedom occupies a central position in the Italian legal system. In order to protect physical integrity, Art. 13, It. Const. provides that “no one shall be detained, inspected, or searched nor otherwise restricted in one’s personal liberty” and that “the law shall establish the maximum length of preventive detention”.

Constitutional statutory and jurisdictional limits are the two instruments that protect this freedom: in fact Art. 13, It. Const. states that “personal liberty may not be restricted except in such cases and in the manner as the law provides” (statutory limit). Moreover, this article also provides that one’s personal liberty may not be restricted “save by order of the judiciary for which the reason must be stated” (jurisdictional limit). This means that, based on criminal law, the forces of public security and the judiciary police must be given specific powers of arrest while the criminal courts must have the power to apprehend and sentence someone to prison. The general principle is that restriction on freedom has to be decided by a judge.

Art. 13, It. Const. also provides a constitutional statutory limit according to which “in exceptional cases of necessity and urgency, strictly defined by law, the police authorities may take provisional measures, which must be reported within 48 hours to the judiciary and which, if the latter do not ratify them within the next 48 hours, are considered as revoked and remain without effect”. Should they fail to be ratified, the measures lose their effectiveness *ex tunc* and the individual regains full enjoyment of his personal freedom.

These urgent cases are to be found in the Criminal Procedure Code.

The recent case law of the Constitutional Court has focused on more sophisticated topics. For example, Decision no. 275 of 2017 declared inadmissible the question of constitutionality concerning the refolement measure against illegal immigrants. Decisions nos. 279 of 2013, 204/2016 and 83/2017 addressed prison overcrowding, also due to the impulse of the European Court of Human Rights (see *Torreggiani v. Italy*, 2013), the conditions of

prisoners sentenced to life imprisonment as well as the very legitimacy of the latter given that it excludes any chance of re-entering society (the so called *ergastolo ostativo*) (Decisions 149/2018 and 253/2019).

#### 3.2. Personal Domicile

Art. 14, It. Const. recognises personal domicile as one of the inviolable rights; it is not happenstance that this article comes right after the one regulating personal freedom since both are safeguarded by the same instruments. Freedom of personal domicile in fact, is conceived as a corollary completing Art. 13, It. Const. given that alongside the protection of an individual’s physical integrity the spaces in which his activities are carried out are also deemed worthy of protection. This is confirmed by how Art. 14, It. Const. construes the term “domicile”. The Constitutional Court, in Decision no. 87/1988, extended the concept of domicile to include one’s motor car but the provisions of Art. 14, take the concept even further to include any domicile (office, hotel room etc.) regardless of whether the person having the right to it, is also the owner, because domicile represents “the person’s spatial projection” (see Const. Court Decision no. 135/2002).

More recently, the Court stated that when a search is authorized orally by a public prosecutor, it needs to be confirmed *a posteriori* for the purpose of rendering the reasons known (Decision no. 252/2020).

The provisions of Art. 14, It. Const. safeguard the freedom of domicile, delimited by the space a person occupies, the so-called *ius excludendi alios* and protects it from undue interference. Citizens as well as aliens and refugees are granted personal domicile as are juridical persons that obviously cannot enjoy personal freedom.

The article specifically states that personal domicile is “inviolable in the manner laid down by law in conformity with guarantees prescribed for safeguarding personal freedom”. Constitutional statutory and jurisdictional limits apply to inspections, searches and seizures. Whereas Art. 13.2, It. Const. contains a clause that could be interpreted as explicitly extending safeguards to “any other restrictions on one’s personal liberty”, Art. 14, It. Const. does not contain a similar provision. Some legal scholars argue that the guarantee of personal domicile only refers to inspections, searches and seizures, however the majority of authors considers Art. 14 to be an “open” clause, given that today one’s privacy may be violated by using more recent technology, for example, interception of telecommunications and electronic surveillance (see Const. Court Decision no. 135/2002).

The third and final paragraph of Art. 14, It. Const. provides for a reinforced content-based constitutional statutory limit by stating that “spe-

cial laws shall regulate verifications and inspections for reasons of public health and safety, or for economic and fiscal reasons”.

### 3.3. *Freedom of Correspondence and Information*

“The liberty and secrecy of correspondence and of every form of communication” are regulated by Art. 15.1, It. Const. In this case as well, the freedom in question should be considered a corollary to personal freedom as provided for by Art. 13, It. Const. because it protects the individual’s relationship with society.

Art. 15, It. Const. safeguards correspondence, that is all messages an individual directs to another in any form whatsoever. Although paragraph 3 explicitly refers to communication by means of correspondence, other forms of interpersonal communication such as e-mail, which obviously did not exist at the time of the Constituent Assembly, are undoubtedly protected given that the provision states that “every form of communication” is inviolable. The framers of the Italian Constitution interpreted correspondence in broad terms because the means, contents and form are substantially different each time they are used. The necessary requisite for correspondence is the presence of one or more well defined recipients. In fact, if the recipient is the general public as is the case of a letter to a newspaper editor or to an internet website then this would come under freedom of expression (Art. 21, It. Const.).

Legal scholars have debated what messages are actually protected by Art. 15, It. Const. i.e. only those intended to remain secret or also those addressed to a particular person that are not secret? Obviously, the latter has a much vaster application and is, in fact, to be considered the correct interpretation because the constitutional provision concerns both freedom and secrecy of correspondence. It also means new rights will be safeguarded in conformity with the liberal spirit of the Italian Constitution in terms of protection of rights. In fact, the Italian Constitutional Court came to the same conclusion when it extended constitutional protection to radio communications with Decision no. 1030/1998.

Freedom of correspondence is intended in both its active and passive forms; both the sender and the recipient are entitled to enjoy this freedom because it means the right to send messages and to receive them without external interference.

The rights and freedoms provided for by Art. 15, It. Const., like the other rights guaranteed by the Constitution, are subject to constitutional statutory and jurisdictional limits; however, Art. 15 does not provide for any form of preventive intervention on the part of the police authorities, not even

under exceptional circumstances. Art. 15.3, It. Const. in fact states that “further limitations upon them may only be imposed by decision of the judiciary, for which the reason must be stated, in accordance with the guarantees laid down by law”, i.e. only a motivated judiciary act may restrict the freedom in question. In recent years, the Italian Constitutional Court reaffirmed that rights can be limited only in the presence of another imperative constitutional interest (Decision no. 20/2016).

The provisions of Art. 15, It. Const. exclude the possibility of urgent intervention by police authorities for the same reason they exclude preventive intervention, while ordinary intervention on the part of the police authorities is regulated by law.

Decision no. 20/2017 states that prisoners’ freedom of correspondence and information, with reference to books and magazines delivered from outside, may be limited by prison authorities, without the intervention of the Judiciary.

### 3.4. *Freedom of Movement, Residence and Expatriation*

Art. 16, It. Const. guarantees that “every citizen shall have the right to travel and reside freely in any part of the national territory” and that “every citizen shall be free to leave the territory of the Republic and re-enter it”, meaning no law may restrict a citizen’s freedom of movement within national boundaries.

The freedom of expatriation is regulated by Art. 35.4, It. Const., according to which “the Republic shall recognise the freedom to emigrate, save for such limitations as are established by law for the common good”. This faculty is guaranteed by an absolute content-based constitutional statutory limit because the Constitution clearly states that the law can only limit freedom of expatriation for the common good. On the contrary to the past and to other countries around the world, the freedom to abandon Italy’s national territory is fully recognised.

Finally, the freedom of residence consists of the freedom to establish oneself in a place of one’s own choosing for a certain period. The exercise of this freedom comprises the freedom to choose one’s workplace. The Constitutional Court in fact declared unconstitutional any preferential measures given to residents in competitive public examinations (Decision no. 158/1969).

To safeguard these freedoms, the Constitution contains a reinforced statutory limit given the fact that restrictions can only be imposed by law and only for reasons of public health or safety.

#### 4. Rights of the Public Sphere

The constitutionally guaranteed freedoms include those actions an individual carries out in the public sphere, to ensure that every one can freely take part in civil society, the political arena and the management of the common good.

##### 4.1. Freedom of Assembly

Art. 17, It. Const. protects "citizens' rights to assemble peacefully" that is the right to hold a voluntary assembly of individuals who meet at the same place for the same purpose. Although both are constituted by persons who have come together for a specific purpose, an assembly differs from an association. An association is stable whereas an assembly is not. In fact, an assembly may be a one-off event (for example the public at a concert) while an association should maintain a certain stability over time to achieve its objectives.

The Constitution provides that an assembly is lawful when it is "peaceful and unarmed". These two provisions are similar and complimentary but not the same. The former is a general warning against events that could happen during the assembly to upset public order or physically harm the participants or third parties. The latter also protects the physical integrity of the participants and third parties, but in addition it has a more specific importance: it prohibits arms or other weapons that can be used to harm other persons from being brought to an assembly.

Art. 17, It. Const. also distinguishes between two types of assembly, which are distinctly regulated, according to the place where the meeting is held. The first type includes meetings in places open to the public and meetings in private premises. "Open to the public" means any physical space with boundaries to which the public has access, but in the respect of certain conditions established by the person who has legitimate enjoyment of the premise (a theatre or stadium for instance, where only ticket holders are admitted). Private premises are those places an individual may utilise privately even if he is not the legitimate owner (his private domicile). The Constitution provides that a meeting may take place in these places "with no previous notice required".

For meetings in a public place open to everyone such as a street or square the organisers are obliged by law "to give prior notice to the authorities" three days prior to the event by supplying all necessary information such as the date, time and purpose as well as personal data and signatures of the organisers themselves. The obligation to give prior notice is not a request for authorisation since the authorities have no power of

discretion to decide whether the meeting can take place or not. If there are "proven reasons of security or public safety", the authorities may forbid it, or if it is underway, break it up. Since prior notice does not constitute a condition of legitimacy or existence of the meeting, the other participants do not have to explain their presence there, nor can the meeting be broken up for this reason but solely for the proven reasons mentioned above.

##### 4.2. Freedom of Association

Art. 18, It. Const. recognises that "citizens shall have the right to form associations freely without authorisation for aims not forbidden to individuals by criminal law". There are essentially three aspects mentioned in this provision: the freedom to organise oneself in groups, the freedom to pursue legitimate aims and the free formation of an association.

The principle of individual freedom is undoubtedly at the basis of the first aspect, that is the choice whether to join an association or not. In fact, the Constitution protects both the positive form, the liberty to found or join an association, and the negative form, the freedom not to join an association if one does not wish to do so. The negative aspect of the freedom of association was inspired by the experience matured under twenty years of fascism when the system of trade unions and other measures such as the obligation to join the Fascist party for public employees amounted to mandatory association.

Even under the present system, some limits are placed on the freedom of association: i.e. registration in professional organisations as a requisite for exercising a particular profession (the bar association, public accountants' association, etc.), sports federations or obligatory consortiums. In these cases, the freedom not to join the association yields to the need to protect the consumer who has the guarantee that the person he has turned to for professional advice has the necessary requisites and knowledge.

The Constitution also provides a general limit to the exercise of the freedom of association "for aims not forbidden to individuals by criminal law".

The third aspect is the free formation of an association, that is, its members may choose whatever organisational model they wish with no legal restrictions. The Legislature may however impose limits on the basis of other constitutional provisions for example when a balancing of interests may be justified if two associations are formed to pursue the same aim, but each with different requisites.

Art. 18.2, It. Const., instead imposes specific limits to freedom of association by forbidding "secret associations, and those which pursue

political aims, even indirectly, by means of organisations of a military character”.

Secret associations are defined by Art. 1, Law no. 17/1982 as those associations that pursue political aims in the broad sense of the word and interfere with the functions of constitutional bodies or public administrations and: *i*) hide their existence; *ii*) make their existence known but not their purpose and aims or *iii*) keep the identity of members secret even from one another.

Para-military groups pursue political ends through “the organisation of its members into corps, divisions or squads with regulations and internal hierarchical structure analogous to those of the military, even adopting uniforms and ranks, whose scope is collective actions of violence or menace” (see Art. 1, Legislative Decree no. 43/1948). These groups are prohibited for two reasons: 1) so that political parties do not organize their own paramilitary group and 2) because their rigidly hierarchical structure excludes democratic procedure (the wearing of uniforms being a particularly telling indication).

Both prohibitions have the same rationale, i.e. avoid the presence of organized subjects whose secrecy and/or authoritarianism would prevent peaceful and democratic public discussion — particularly in the political sphere. This is also the rationale behind Transitory Provision XII, “it shall be forbidden to re-organise under any form whatsoever, the dissolved Fascist party”.

#### 4.3. *Freedom of Religion and Creed*

Art. 19, It. Const. protects religious freedom establishing that “all shall be entitled to profess their religious beliefs freely in any form, individual or in association, to promote them, and to celebrate their rites in public or private, provided that they are not offensive to public morality”.

In the first place, this freedom is also guaranteed to aliens. It is particularly important to remember this today when migration of populations on a vast scale brings persons of different religious faith in contact and democracy is called to accommodate plural institutions. In recent years, the Constitutional Court has confirmed that “religious freedom is guaranteed to everyone, without distinctions” (Decision no. 63/2016).

In the second place, Art. 19 provides for different forms of worship: from the most private forms (individual profession of faith, private practice of faith) to those which foresee collective practice (group profession of faith, exercise of religious rites in public) and finally forms, like proselytism, that involve subjects who would otherwise be extraneous to the faith. The

examples provided for by the article are sufficiently vast to cover all possible manifestations of religious faith.

The limit to these manifestations identified by the constitutional provision is public morality: “provided that they are not offensive to public morality”. This establishes, on the one hand, a negative limit for the legislature because public morality is the only reason that might allow restrictions to freedom of religion and, on the other hand, it allows ample space for the exercise of freedom of religion, thanks to the Constitutional Court’s interpretation. The Constitutional Court has established that the mention of public morality in Art. 19, It. Const. does not necessarily refer to morality or ethics. To the contrary it includes all those precepts that guarantee “social relationships” (Decision no. 9/1965) and permit peaceful co-existence of worshippers. Violation of this limit may force public security authorities to place restrictions on this freedom but never preventative measures. On more than one occasion the Constitutional Court has in fact stated that repressive preventative measures based on presumed threat deriving from the practice of a particular religion are unconstitutional.

Art. 19, It. Const. goes hand in hand with Art. 20, It. Const., freedom of religious associations, which provides that “the religious character and the religious or confessional aims of an association or institution shall not justify special legal limitations or special fiscal burdens for its establishment, legal capacity, or any of its activities”. The intent of these provisions is to avoid discrimination and different treatment of religious and non-religious institutions where one could be chosen over the other.

Neither may public authorities — such as a Region through a statute concerning planning — distinguish between religious groups that have or have not reached an agreement with the State in order to regulate their right to build or enjoy places of worship (Decision no. 63/2016). Freedom of worship also entails the lawful expectation of all religious communities to obtain adequate spaces to practice religious rites. This does not, however, prevent a regional statute from prescribing rules for a proper insertion of religious buildings into the local planning system, but it does forbid the formal preclusion of religious spaces in the absence of a specific plan (Decision no. 254/2019).

#### 4.4. *Freedom of Expression*

Art. 21, It. Const. grants to everybody “the right to express their thoughts freely by speech, in writing, and by all other means of communication”. In the phrase, “all have the right to express their thoughts”, two

different freedoms are safeguarded, one negative and one positive. The negative one is the freedom not to express one's thoughts.

There are two dimensions to the positive freedom; one is active and protects the freedom of the sender of the message who may freely exercise it; the other is passive and safeguards potential recipients of the message who have the freedom to receive information not covered by secrecy or of a binding confidential nature. Whereas the active freedom is limited by public morality (compare Const. Court Decision no. 9/1965), freedom to receive information is restricted by privacy. In fact the freedom to be informed does not include the right to access so-called "sensitive data" about an individual without his consent.

With reference instead to information spread by mass media, particular importance is given to the second part of Art. 21, It. Const., which states that this freedom may be exercised "by speech, in writing, and by all other means of communication". The Constitutional Court pointed out that the general interest of the population in being informed should be protected through "plural sources of information, free access to them, absence of even temporary unjustified obstacles imposed by law, and the free circulation of notices and ideas" (Decision no. 105/1972). Now that the Court has made the principle of pluralism of the sources of information part of Italian law, it has to ensure that the principle has substantive content.

No regulation governs ownership of the means of communication. In some cases, however, the scarcity of certain resources — like radio and TV frequencies, or the expenses involved in providing certain services, i.e. the cost of running a daily newspaper or a TV station, lead to an inevitable limitation of who can really own a media outlet and thus unavoidably limits the exercise of such a right. The Constitution ensures that this limitation is equal for everybody.

According to Art. 21.2, It. Const., "the press shall not be subjected to any authorisation or censorship", so it is unconstitutional to apply any preventive censorship to control newspaper information. However, freedom of expression is always controlled by limits of public morality (Art. 21.6, It. Const.) which means respect for common sense of decency. Furthermore, "the law shall lay down proper provisions for preventing and repressing all violations". To protect public morality, repressive measures are only permitted after public morality has been offended. The principle of freedom of communication is protected by an absolute, reinforced constitutional statutory limit and a limit of jurisdiction which provide that printed material may be "seized only by order of the judiciary, for which the reason must be stated, in case of offences for which the law governing the press expressly provides, or in the case of violation of such provisions as the said law may prescribe for

identifying the persons in charge". "In such cases, under conditions of absolute urgency and when the immediate intervention of the judiciary is not possible, periodical publications may be seized by officers of the judicial police, who shall report immediately to the judiciary and in any case not beyond 24 hours".

The fifth paragraph of Art. 21, It. Const. affirms the principle of transparency, that is, "the law may order, by means of general provisions, that the financial sources of periodical publications be disclosed". The rationale behind the law is to guarantee that financing of the mass media sector be made public knowledge as a further guarantee of both the principle of external pluralism and the rights of all users to different sources of information.

The text of Art. 21, It. Const. makes specific reference to printed publications without explicitly providing regulations for other media. Given its silence on the matter, it is not possible to extrapolate the regulations for the press and apply them to other means of communication, which therefore have to be regulated by primary law sources.

The legislative evolution regulating radio and TV broadcasting has been long and convoluted. Law no. 112, 3 May 2004, currently in effect, established new regulations for RAI, the State-owned broadcasting system, new laws regulating digital broadcasting and lastly a new technique for calculating antitrust limits to guarantee external pluralism.

A recent Decision (no. 150/2021) stated that even in cases of extremely serious defamation or diffusion of false news the compulsory imposition of a prison sentence on a journalist must be prescribed by law and that alternative sanctions such as the application of a fine must be left to the judge to decide in order to prevent intimidations on the profession.

## 5. Social Rights

Art. 3.2, It. Const. provides the foundation for State intervention in the social services sector; "it is the duty of the Republic to remove all economic and social obstacles, which, by limiting the freedom and equality of citizens, prevent the full development of the individual and the participation of all workers in the political, economic and social organisation of the country".

### 5.1. Education

The right to education is provided for by Arts. 33-34, It. Const. The Constituent Assembly felt that education is essential to developing a person's

full potential and that it represents a means for him to better his social position.

The Constitution provides that "schools shall be open to everyone", so access to public education is guaranteed not only to citizens, but also to aliens and "the Republic shall guarantee primary education, given for at least eight years, and that it is compulsory and free" and it "shall lay down general rules for education and shall establish public schools of all kinds and grades".

In 2012, the Italian Constitutional Court was called to verify the constitutional legitimacy of Art. 4, L. 264/1999, concerning the restricted access to some university courses (Decision no. 302/2013). The question of constitutionality was declared inadmissible, so Art. 4, L. 261/1999 is still in force. In 2013, the European Court of Human Rights stated that the entrance examinations to gain access to some university faculties do not violate the right to education.

The Constitution regulates education along general lines: according to the provisions of Art. 43.2, It. Const. it must guarantee "compulsory and free" primary education for at least eight years; instead, primary or sub-primary laws establish that it is a citizen's right and duty to attend school. Once elementary school is finished, the citizen's obligation to attend school ceases whereas the Republic's commitment to guarantee education continues "since the able and deserving, even if lacking financial resources, shall have the right to attain the highest grades of learning" (Art. 34.3, It. Const.).

The Constitution allows "public and private bodies to establish schools and educational institutions without financial burdens on the State". "The law, in laying down the rights and obligations of private schools which request parity, shall guarantee full liberty to them, and to their pupils, equality of treatment with the pupils of public schools" (Art. 33.4, It. Const.).

As regards the subjects taught, there is a second freedom less tied to the social dimension of the service and more to the freedom of expression. This is the so-called freedom in teaching, that is the principle sanctioned by the Constitution with the formula, "the arts and sciences shall be free, and free shall be their teaching" (Art. 33.1, It. Const.). This means that autonomy of teaching is constitutionally recognised alongside the autonomy of teachers to determine the contents of what they teach.

## 5.2. Healthcare

The Constitution requires the "Republic to protect health as a basic right of the individual and as an interest of the community" (Art. 32.1, It. Const.) which means that all persons have a right to healthcare irrespective of nationality because it is a "fundamental" right.

There are two different aspects to the freedoms guaranteed in this article: one is a negative freedom i.e. no medical procedure may be administered without the patient's consent. The other is positive and even more specific, the principle of freedom of treatment. This means the right to choose one's doctor and the right to an informed consent, that is a doctor must explain the procedure to the patient and obtain his informed consent before beginning any treatment. In case of emergency there are exceptions to these principles.

On several occasions, the Italian Constitutional Court said that compulsory healthcare treatment, such as vaccinations, is not incompatible with the Art. 32, It. Const. when such treatment improves not only the health of the individual, but also the health of the community (Decisions nos. 137 and 186/2019, 118/2020).

The Court has also defined precise forms for the expression of informed consent, with specific reference both to the quality of the interested subject, such as a minor or a parent, and to the procedure to receive it.

Finally, the Court remedied the lack of intervention by Parliament and declared the unconstitutionality of a criminal provision that sanctions those who assist the suicide of a sick person, who, in complete consciousness and freedom, decides to refuse medical therapy implying physical or moral pain that he/she deems contrary to his/her sense of dignity (Decisions nos. 207/2018 and 242/2019).

Healthcare is also regulated by law as a social right; the Constitution declares that the Republic "shall grant free medical care to the poor" (Art. 32.1, It. Const.). Although free medical care is guaranteed to low-income citizens, not all of them have the right to free healthcare, contrarily to what is provided for public education which is instead free for everyone. Because healthcare is the costliest service the State must provide, citizens have different treatment options according to the provisions of law in effect. Certain treatments are provided freely, others require a co-payment by the patient, and still others, require full payment by the patient.

Several Constitutional Court cases in the last few years have concerned pregnancy, artificial insemination and the treatment of embryos. For instance, the Court has established: imposing by law that the implant of embryos should be less than three and carried out at the same time is unreasonable (Decision no. 151/2009); no prohibition of heterologous artificial insemination can be introduced (Decision no. 162/2014); fertile couples may not be prevented from medically assisted procreation if they are carriers of genetic diseases (Decision no. 96/2015); eugenic selection of embryos may not be criminalized even in case of prevention of genetic diseases (Decision no. 229/2015).

### 5.3. *Welfare*

Art. 38, It. Const. guarantees two different principles: paragraph 1, "all citizens unable to work and lacking the resources necessary for their existence shall be entitled to private and social assistance", and paragraph 2, "workers shall be entitled to adequate insurance for their needs in case of accident, illness, disability, old age and involuntary unemployment".

These two provisions are typical of a Welfare State which safeguards the worker and the citizen unable to work by providing welfare for them, but also labour in general by ensuring fair wages for work (Art. 36.1, It. Const.). To protect the principles of pursuit of equal social status (Art. 3.1, It. Const.), a social welfare system must be organised and "entrusted to public bodies and institutions established or supplemented by the State" (Art. 38.4, It. Const.).

The Constitutional Court has recently stated that it is constitutionally admissible to withdraw part of a retirement benefit, that exceeds a certain level established by law, in order for the Treasury to save financial resources (Decision no. 213/2017).

Welfare assistance is not attributed exclusively to the State. Private parties may provide this service through forms of protection offered by private institutions. In fact, Art. 38.5, It. Const. provides that "private-sector assistance may be freely provided".

Over the last few years, the Constitutional Court has underlined the fact that the implementation of welfare expectations is a function of Parliament, however it has constantly urged the latter to take measures able to give some concrete content to such rights. Recent decisions of this kind include issues such as the education of disabled persons (no. 275/2016), house detention of mothers of disabled children under 10 (no. 18/2020), right to a pension for assistance of disabled persons of whatever age (no. 152/2020).

In more general terms, the Court handed down a very interesting judgment in 2019 where is linked the ban on excessive deficit spending of local authorities to the preservation of the resources for future generations (no. 18/2019).

### 5.4. *Housing*

The Italian Constitution does not expressly or implicitly mention adequate housing as a right. Nevertheless, both ordinary and constitutional law and legal scholarship have argued that the right to housing can be inferred from other general principles of the Constitution, in particular from Art. 2, It. Const. Such an extensive and "modern" interpretation is a significant

example of how the Constitution's flexibility allows it to adapt to new needs deriving from social change without continuous amendments.

At the beginning of the 1980s ordinary case law and some legal scholars held that the right to housing was a perfect subjective right, and on the basis of the French and German experience, intended for example to give tenants greater guarantees than those given to landlords. The supporters of this position felt that the provisions of Art. 2, It. Const. implicitly included the right to housing among those fundamental rights guaranteed by the Constitution. However, the Constitutional Court did not validate this position. After several judgments in the opposite direction, only the Constitutional Court recognised that the right to housing should be considered "among the essential requisites of society to which the democratic State created by the Constitution, conforms" (Decision no. 217/1988), implying that the right to housing must be recognised so the Constitution's master plan can be fulfilled.

This is a significant example of how "new rights" emerge and are protected. The Constitution contains many open clauses and expressions of principles (the recognition of inviolable human rights in Art. 2, It. Const. for example) but it is up to ordinary judges, constitutional judges, legal scholars, etc. to determine how they are to be interpreted.

## 6. *Economic Rights*

The part of the Constitution dedicated to economic rights, the so-called Economic Constitution, has always been one of the most controversial of Italian constitutional law. The formulation of Title III is in fact the result of a balancing of interests among the three principle political forces represented at the Constituent Assembly: the Christian Democrats, the Communists and the Socialists; the difficult mediation, given the three different political orientations, produced a text whose provisions, open to more than one interpretation, are not fully applied even today.

At first, the provisions in question were interpreted as ulterior specifications of the principle of equality in Art. 3, It. Const. "it is the duty of the Republic to remove all economic and social obstacles, which, by limiting the freedom and equality of citizens, prevent the full development of the individual and the participation of all workers in the political, economic and social organisation of the country".

From this theoretical interpretation derive a series of consequences: the intervention of public power in the economic sector in the name of the principle of equality would have justified practically any type of State

intervention, even restricting personal freedom; private property would arguably have been possible only in the name of social equality. To the same extent, the enjoyment of all economic freedoms, both individual such as the ownership of equipment and general such as competition and free market, would have been severely restricted because social needs protected by the Constitution would prevail over them.

Starting in the 1970s, this vision was discarded in favour of the mechanism of a Welfare State and supra-national Community law, created to protect economic rights among others. Since the role of the State in the economic market is significantly less important now because of these two systems, in particular Community law, the safeguard of competition and the freedom of market have become the State's principal task in economic matters. At the same time, the State focuses on regulating the economy, balancing public finance and monetary stability.

Therefore, Title III and individual economic rights must be looked at in a different light so they can be conciliated with European rights. The influence of Community law on domestic Italian law is such that legislative power for economic rights has been taken away from national legislation and given to a higher level, the European Community, thus altering equilibrium with respect to the Constituent Assembly's original intentions.

### 6.1. *Right to Property*

Art. 42.1 establishes that "property may be public or private", and in paragraph 2, the Constitution puts a statutory limit on how it may be acquired and enjoyed, "in order to ensure its social function and to make it open to all". However, this never led to restrictions on the unconditional enjoyment of private property and in the light of Italy's membership in the EU this provision must be interpreted even less extensively.

This provision should today be taken as meaning that the law may not institute ways of acquisition and enjoyment of private property which are prejudicial to other guaranteed constitutional rights. In addition to the above-illustrated statutory limit, the Constitution provides for another limit to private property: expropriation. In fact, Art. 42.3, It. Const. states that "private property, in such cases as are provided for by law, and with payment of compensation, may be expropriated for reasons of common interest".

The power to proceed to expropriation at first recognised only to the State, is now attributed to Regions, Provinces and Municipalities which may take the necessary steps for expropriation in many ways, usually a declaration that the property to be expropriated is of common interest.

Compensation is the counteroffer to the subject who has his rights to the expropriated goods restricted. The Constitutional Court has considerable case law on expropriation because it is often called to judge on the legitimacy of measures that did not assign just compensation for expropriated property. The Court held that the expropriated subject has the right to a compensation which while not equivalent to market value must have more than just a symbolic or negligible value so as to "satisfy" the subject who has to relinquish his property (Const. Court Decisions no. 5/1980, 283/1993, 348/2007). It is important to underline that the Constitutional Court declared unconstitutional Art. 5 *bis*, d.l. 333/1993 because it provided that the compensation for expropriation of housing areas was not correlated to the economic value of the property (Decision no. 348/2007). In the opinion of the Court, such legislative provision was in contrast with the jurisprudence of the European Court of Human Rights which stated, on the contrary, that the compensation for expropriation *must* be correlated to the economic value of the property. Art. 1 of Protocol to the Convention for the Protection of Human Rights and Fundamental Freedoms sets that "no one shall be deprived of his possessions except in the public interest and subject to the conditions provided for by law and by the general principles of international law". As a result of its previous Decision, the Constitutional Court has stated that the compensation for expropriation must now be correlated to the economic value of the property also as regards non-building areas (Decision no. 181/2011).

Expropriation, even with all the guarantees provided for, represents the classic example of a situation where common interest prevails over individual rights.

### 6.2. *Freedom of Enterprise*

Exercise of economic enterprise "is free" (Art. 41.1, It. Const.) and "it shall not be carried out against the common good or in a way that may harm public security, liberty and human dignity" (Art. 41.2, It. Const.).

Even in this case, the compromise between liberal viewpoints and public regulation of the economy is evident, with the pointer on the scale tending more towards public regulation than it does for other freedoms. Art. 41.3, It. Const. imposes a statutory limit, "the law shall determine appropriate planning and controls so that public and private economic activities may be directed and coordinated towards social ends".

With the guarantee of these freedoms, the private person is free to undertake any economic activity whatsoever, unless legislation has imposed specific restrictions, for example a license, to protect lawful claims typically

of consumers. The freedom of enterprise may be restricted if in the balancing of interests, it has less dignity.

Today Art. 41, It. Const. is interpreted as a fundamental right to freedom of competition where each business entity may have access to the free market and carry out its activity on equal footing with its competitors under equal conditions.

### 6.3. *The Market and Competition*

Whereas the Italian Constitution protects the freedom of enterprise, its original text did not protect the freedom of competition understood as the freedom of business entities to operate in the market under equal conditions.

Nevertheless, this freedom has entered Italian law through Community law, which at the highest level i.e. the Treaty agreements, makes competition one of its basic freedoms. Because of its membership in the Community, Italy has had to adopt a series of instruments suitable to safeguard equality among competitors in the market and prohibit conditions that could alter it. In compliance with EU Law, Italy has approved laws rendering illegitimate certain behaviours considered anti-competitive (mainly cartels — various forms of collusive price fixing — and abuse of dominance) that alter the market and the right of business entities to access it and compete under conditions of parity. At the same time, various independent Authorities have been instituted to control that these laws are not violated (see Chapter Six).

Unfortunately, in addition to the tardiness with which these instruments were adopted, another problem is the disharmony and multiplicity of Italy's competition laws. Alongside the general antitrust discipline adopted with Law no. 287, 10 October 1990, other interventions regulate specific sectors of considerable interest such as mass communication, the press, radio and TV advertising, and credit.

Art. 1, Law no. 287/1990 explicitly recognises the prevalence of Community law in competition matters. The regulations introduced by the Italian law are in fact only applicable to cases "which do not come under the jurisdiction of Community law" (paragraph 1) or "the principles of Community law on competition" (paragraph 4). Domestic Italian law has been introduced as a residual regulation with respect to Community law and Community principles are such that they complete domestic law when it has gaps in the specific subject matter.

To guarantee competition and the market as well as the respect of regulations governing them, the above-mentioned law has instituted an independent Authority, for brevity's sake, known as the Antitrust Authority, like its American counterpart of the same name. It is composed of five

members each of whom has a particular competence, appointed for a single term of seven years by the Presidents of both Chambers to guarantee its independence from government politics (also see Chapter Six).

Since the introduction of the notion of competition through the amendment to Title V, Part II of the Italian Constitution in 2001 which made it a reserved legislative competence of the State (see art. 117.2.e), the Constitutional Court has often referred to this notion as being a general principle (e.g., Decisions nos. 270/2010 and 242/2017).

### 6.4. *Trade Union Rights*

Trade union freedom is protected by the Constitution because it is a collective reflection of the freedom to work, elevated to a fundamental principle under the provisions of Art. 1, It. Const., whereas trade union rights are protected under Art. 39, It. Const., even though most of its provisions have never been applied. For example, Art. 39.2, It. Const. provided for a central trade union registration office, but at a constitutional level the mechanism for instituting the registry was somehow blocked, and the law was never approved.

Since it is not obligatory to register trade unions, all the other effects provided for by the Constitution connected to fulfilling this obligation, are not enforceable. In fact, paragraph 4 of the above-mentioned article provided that "registered trade unions shall be legal persons. Being represented in proportion to the number of their registered members, they may jointly enter into collective labour contracts".

In this context, trade unions cannot be legal persons since they are not registered, hence collective labour contracts cannot be automatically applied to "all those who belong to the industry to which said contracts refer" (Art. 39.4, It. Const.). In fact, given the present situation, labour unions are nothing more than un-recognised associations and the contracts they subscribe to have no *erga omnes* effect. In any case, the Constitutional Court has asserted that it is possible to establish an in-company trade union organisation also by trade unions that have not signed any corporate collective agreements (Decision no. 231/2013).

The original intentions of the Constituent Assembly have been partially recuperated in practice, so that non-union workers have the right to the same work and wage conditions provided for in collective labour union contracts.

In 2018 the Constitutional Court declared partially unconstitutional the Military Code provision that forbade members of the armed forces to create or belong to a trade union (Decision no. 120/2018). Still in 2018 the Court established that, according to the code of self-regulation, the abstention of a

lawyer does not imply that the detained defendant has chosen to be tried in absence of a counsel (no. 180/2018).

## 7. Political Rights

All lawful claims protected by the Constitution with the purpose of allow individuals to participate in the civil, political and public life of the country, are considered political rights.

Art. 48, It. Const. sanctions voting rights, "all citizens, men or women, who have attained their age of majority shall be entitled to vote", which means that the right to vote is granted to citizens, but not to aliens. Recently, Community law has greatly influenced this; in fact, Art. 19 of the founding Treaties recognises active and passive electoral rights of all European citizens in local elections in the territory where they reside regardless of citizenship.

To guarantee each elector's freedom of expression, the Constitution provides that "votes shall be personal and equal, free and secret". However, there are no material consequences for the failure to exercise one's right to vote, even though "to vote is a civil duty" (Art. 48.2, It. Const.).

The article goes on to provide for a statutory limit, "the law shall establish under which conditions and in which ways the citizens who reside abroad may effectively exercise their right to vote. To this end a constituency of the Italians abroad is established for the election of the Chambers, to which a number of seats shall be assigned by constitutional law in accordance with criteria determined by law".

Art. 49, It. Const. provides that "all citizens shall have the right to associate freely in political parties in order to contribute by democratic means to the determination of national policy". According to some authors, this provision calls for a statutory limit whereby political parties should follow the principles of democracy in their internal organisation, but again this is a provision that was never implemented.

The constitutional regulation of political parties is the direct expression of the principle of political representation and mediated democracy and the principle of popular sovereignty. The Constitution assigns political parties the function "to contribute by democratic means to the determination of national policy" that is to gather together personal political opinions and "channel" them into larger organisations so their existence can be recognised and protected. In mediated democracy political parties act as a channel for mediation between the populace and parliamentary representatives. In fact, Italian law specifies that parliamentary members represent the country as a whole and not each of its electorate's interests, so there is no possibility of a

peremptory mandate in which the parliament members are obliged to vote according to the wishes of the electors who voted for him.

Mediated democracy is partially mitigated by the provisions of Art. 50, It. Const., "all citizens shall have the right to petition the Chambers demanding legislative measures or setting forth general needs".

Lastly, Art. 51, It. Const. establishes the principle of access to "public offices and elective positions in conditions of equality" with a reinforced content statutory limit determining the requisites for office since "equal chances must be promoted for men and women".

## 8. Constitutional Duties

Art. 2, It. Const. "requires the performance of imperative political, economic and social duties". There are two key concepts in this article: (1) it establishes that citizens have duties as well as rights and (2) it specifies the scope of these duties. In a liberal state in fact, any restriction of individual freedoms is admissible only if justified by a public interest greater than that of the individual.

The most immediate example is that provided for by Art. 53.1, It. Const., "all shall contribute to public expenditure in proportion to their resources". This means that citizens as well as residents are obliged to pay the State a part of their income to help finance public services. In fact, the next paragraph provides that "the taxation system shall conform to the principle of progressivity", meaning that above a certain level, those who have higher incomes pay proportionately higher taxes. This provision applies the principle of substantive equality to the field of taxation.

Less topical today are the provisions of Art. 52, It. Const., "the defence of the country is the sacred duty of every citizen". Until 2005 military service was mandatory and all males were drafted for eighteen months, later reduced to twelve months. Although Italian armed forces are presently composed only of career military, in case of particular and extraordinary necessity, all citizens may be called to arms.

Art. 59, It. Const. establishes two obligations: "all citizens shall have the duty to be loyal to the Republic and to comply with the Constitution and the laws". While the second part of this norm — respect for the Constitution and the law — is binding for citizens, resident, aliens and even tourists no matter how long they stay in Italy, more controversial is the extension of the first part — loyalty to the State — to non-citizens. Some scholars argue it only applies to citizens, whereas others argue it extends to resident aliens. The solution to this dilemma depends on how the provision is interpreted. If it

identifies a "spiritual" obligation rooted in the belonging to a community, then it probably cannot be imposed on non-citizens because there would be no way to impose or enforce such sense of belonging. If, to the contrary, the expression is a hendiadys, the obligation of loyalty and respect of the law can be imposed on citizens and aliens who sojourn in Italy alike.

"It shall be the duty and right of parents to support, instruct and educate their children, including those born out of wedlock" (Art. 30.1, It. Const.). This duty is *prima facie* quite different than others illustrated above because it only applies to a specific group of individuals (parents) and not the entire community. Nonetheless the duty of Art. 30 It. Const. can be considered a Constitutional Duty. First, it is part of a set of provisions through which the Constitution safeguards the family in general, and minors in particular, and it has therefore an ethically relevant dimension. Secondly, the article only apparently concerns a specific group of individuals, and it can be argued it really provides safeguards for society at large: it can in fact be interpreted as instantiating those forms of intergenerational solidarity mentioned at the beginning of this chapter.

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